

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: August 6, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

LINE 5	25CV465371	American Express National Bank vs Maryam Rafipour	Motion to Set Aside Default Judgment Scroll down to Line 5 for Tentative Ruling.
LINE 6	26CV484388	Rosette Simon et al vs EAH Housing Inc. et al	Demurrer Scroll down to Line 6 for Tentative Ruling.
LINE 7	24CV449313	Keith Lyle vs Ford Motor Company et al	Motion for Summary Judgment/Adjudication Scroll down to Line 7 for Tentative Ruling.

- 00000 -

9:01 A.M.			
LINE 1	23CV414336	Marissa Dominguez et al vs Marriot Hotel et al	Hearing on Minor's Compromise Parties to appear.

- 00000 -

9:00 A.M.

Calendar Line # 3

Case Name Michael Douglas vs Ford Motor Company et al

Case No. 24CV452437

Motion for Summary Adjudication

Before the court is defendant Ford Motor Company's motion for summary adjudication against plaintiff Michael Douglas's fifth cause of action. Pursuant to California Rule of Court, rule 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

Plaintiff Michael Douglas ("Douglas") filed a Complaint on November 22, 2024, against defendants Ford Motor Company ("Ford") and Future Ford Lincoln of Roseville seeking claims under the Song-Beverly Consumer Warranty Act (Civ. Code, § 1790, et seq; the "Act"). According to the Complaint, Plaintiff purchased a 2018 Ford F150, vehicle identification number: 1FTEW1EG2JFA32480 under warranty on March 3, 2018 (the "Subject Vehicle"). (Complaint, ¶ 10). Before Plaintiff purchased the vehicle, Ford knew that vehicles equipped with the same 10-speed transmission as the Subject Vehicle suffered from defects that would cause hesitation and/or delayed acceleration; harsh and/or hard shifting; jerking, shuddering, and/or juddering (the "Transmission Defect"). (*Id.* at ¶ 26).

Plaintiff alleges the following six causes of action against Ford: (1) violation of Civil Code section 1793.2, subdivision (d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation of Civil Code section 1793.2, subdivision (a)(3); (4) breach of the implied warranty of merchantability; (5) fraudulent inducement – concealment; and (6) negligent repair.

Ford filed the instant motion for summary adjudication ("MSA") on May 14, 2026 that was accompanied by a proof of service indicating electronic mail service to the plaintiff's counsel. On May 27, 2026, the court granted Ford's *ex parte* application to advance the hearing on Ford's motion from September 8, 2026 to August 6, 2026 as this matter is set for a jury trial on September 8, 2026. Plaintiff filed timely written opposition, and Ford filed a timely reply.

The Court has carefully reviewed the Defendant's notice of motion (totaling 3 pages); memorandum of points and authorities (totaling 11 pages); Separate Statement (totaling 11 page); Declaration of Katherine P. Vilchez and Exhibits A-I in support of the defendant's motion for summary adjudication (totaling 109 pages); Declaration of Eric Kalis in support of the defendant's motion (totaling 5 pages); *ex parte* application to advance the MSA date; Amended Notice for MSA (totaling 3 pages); Opposition papers (totaling 14 pages); Separate Statement in Opposition (totaling 25 pages); request for judicial notice in support of the plaintiff's opposition to the MSA (totaling 63 pages); notice of lodging documents under seal (totaling 3 pages); redacted Declaration of Benjamin Fuchs in support of the plaintiff's opposition (totaling 15 pages); Declaration of Benjamin Fuchs in support of the plaintiff's opposition and Exhibit 1 (totaling 489 pages); Reply brief (totaling 12 pages); Defendant's responses and objections to plaintiff's separate statement of undisputed facts (totaling 17 pages); Defendant's response to plaintiff's request for judicial notice (totaling 31 pages); Defendant's evidentiary objections to Declaration of Fuchs (totaling 31 pages); Declaration of Haile M Rogerson in support of the MSA and attached Exhibits A-D (totaling 37 pages); proof of services; and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 437c, subdivision (c), a motion for summary judgment or summary adjudication "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subd. (c)).